

Ashok Kumar Dubey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench (Court No. 21) · 28 March 2023 · WRIT - C No. 10001 of 2023 ·
Disposed with liberty to object under clause 6.5

HEADNOTE

A writ seeking reduction of contracted load from 15 KVA to 6 KVA and correction of the electricity bill on that basis disputes the bill's correctness. The remedy is an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be decided by a speaking order.

FACTUAL SUMMARY

Ashok Kumar Dubey held an electricity connection recorded at a contracted load of 15 KVA. He sought a writ of mandamus directing the respondents to reduce that load to 6 KVA and to correct his electricity bill by treating the load as 6 KVA. The State of Uttar Pradesh and three others were impleaded. The petition was heard by a Division Bench of the Allahabad High Court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Disputed electricity bill — objection under clause 6.5

HOLDING

Where the petitioner disputes the correctness of the electricity bill, including by seeking reduction of contracted load from 15 KVA to 6 KVA and correction of the bill on that footing, the remedy is an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ is disposed of with liberty to file that objection, which respondent No. 3 must decide by a speaking order. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill The Court treated the prayer to reduce load from 15 KVA to 6 KVA and to correct the bill as a dispute over the bill's correctness, for which the remedy is an objection under clause 6.5. ¶ 1

clause-6.5-alternate-remedy-to-writ The writ was disposed of without adjudicating the load or the bill, with liberty to file a clause 6.5 objection to be decided by respondent No. 3 by a speaking order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONTRACTED LOAD SHOULD BE REDUCED FROM 15 KVA TO 6 KVA AND THE BILL CORRECTED ACCORDINGLY.

Left to respondent No. 3 to decide by a speaking order if the petitioner files an objection under clause 6.5. ¶ 1